Digital Food Store Owner Agreement

This Digital Food Store Owner Agreement (the **"Agreement"**) is entered into as of signing up on platform **[Insert Effective Date]** (the **"Effective Date"**), by and between:

1. **Food Bundles Ltd**, a company operating the Food Bundles platform under the laws of the Republic of Rwanda, with its principal place of business in Kigali, Rwanda, accessible at www.food.rw and related official URLs (**"Platform"**, **"Food Bundles"**, **"we"**, **"us"**, or **"our"**); and
2. **The Digital Food Store Owner**, an individual or entity registered on the Platform with the username **[Insert Username]** and contact information provided during registration (**"Store Owner"** or **"you"**).

This Agreement governs your participation as a Digital Food Store Owner on the Platform. The Digital Food Store is a dedicated section of the Platform for sales to onboarded restaurants and similar clients who use a post-payment option (locally referred to as **Agakaye k'amadeni**, a credit-based "buy now, pay later" arrangement allowing deferred payment after delivery).

By registering as a Store Owner and accepting this Agreement (via electronic acceptance on the Platform or continued use), you agree to be bound by its terms. Electronic acceptance is valid and binding under **Law No. 18/2010 Relating to Electronic Messages, Electronic Signatures and Electronic Transactions**. If you do not agree, do not register or act as a Store Owner in the Digital Food Store.

1. Definitions

- **Approved Voucher / Order**: A Voucher Request approved by the Store Owner (or by Food Bundles on the Store Owner's behalf if authorized under Section 8), enabling the Client to check out up to the approved value under the stated post-payment terms.
- **Client**: A restaurant or similar buyer onboarded by Food Bundles for the Digital Food Store and eligible for post-payment (Agakaye k'amadeni).
- **Default**: A Client payment that remains unpaid **thirty (30) days after the due date** stated in the Approved Voucher/Order, excluding amounts subject to an active, good-faith dispute under Section 5.4.
- **Digital Food Store**: The Platform section dedicated to post-payment sales to qualified Clients.
- **Earnings**: Under the Standard Model, the Store Owner's compensation equal to the Margin Percentage applied to the **Actual Utilized Order Value**.
- **Fixed ROI Model**: An alternative compensation arrangement where, by mutual agreement, the Store Owner receives a fixed monthly return on a principal deposit instead of per-order Earnings.
- **Inventory**: The aggregate pool of fresh food products (e.g., fruits, vegetables, produce) sourced, stored, handled, and delivered by Food Bundles for the Digital Food Store.
- **Margin Percentage (Commission)**: The fixed percentage of the Actual Utilized Order Value that constitutes Earnings under the Standard Model.
- **Platform Commission**: The fee (currently **5%**, or such other rate as notified under Section 3.6) deducted by Food Bundles from Earnings at payout under the Standard Model.
- **Store Owner Wallet**: The dashboard balance showing pending/realized Earnings (or Fixed ROI accruals), transaction history, and Voucher status.
- **Voucher Request**: A request initiated by a Client specifying a monetary limit and deferred payment terms.
- **Voucher Validity Window**: The period during which a Client may use an Approved Voucher to check out, as defined in Section 2.4.

2. Platform Operations and Store Owner Role

2.1 Inventory, Title, and Fulfillment

Food Bundles exclusively sources, manages, stores, handles, and delivers all Inventory in the Digital Food Store. **Store Owners do not purchase, hold, or take title to Inventory. Title to Inventory remains with Food Bundles until delivery to the Client (or as otherwise required by applicable law).**

2.2 Client Onboarding and Credit Assessment

Food Bundles exclusively onboards Clients for the Digital Food Store and performs creditworthiness assessments before Voucher Requests are issued to Store Owners.

2.3 Voucher Decisions

Participation in the Digital Food Store is limited to reviewing and approving or rejecting Voucher Requests for post-payment purchases. Unless you authorize Food Bundles to manage approvals on your behalf under Section 8, you have discretion to approve or reject Voucher Requests.

2.4 Voucher Validity and Utilization

An Approved Voucher may be used by the Client to check out **within twelve (12) hours from the time of approval** (the **"Voucher Validity Window"**). If the Client does not check out within the Voucher Validity Window, the voucher expires and no Earnings are credited for that voucher.

2.5 Order Process and Wallet Posting

Upon checkout by the Client, the **Actual Utilized Order Value** is recorded and reflected in the Store Owner Wallet as **pending** Earnings (Standard Model) or contributes to Fixed ROI accruals (Fixed ROI Model). Food Bundles handles fulfillment, delivery, invoicing, and payment collection.

2.6 Fees

No upfront transaction or platform fees are charged to Store Owners. Under the Standard Model, the Platform Commission is deducted **only at payout** of Earnings.

3. Compensation Models

3.1 Standard Model (Per-Order Margin)

Unless you elect the Fixed ROI Model via Platform settings or a separate written addendum, you participate under the Standard Model.

3.2 Margin Percentage Setting and Changes

Food Bundles sets your Margin Percentage and will notify you via dashboard and/or email. The Margin Percentage is guaranteed for up to **three (3) months** from notification. Any change after that period applies **only to Voucher Requests approved after the effective date of the change**.

3.3 Earnings Calculation (Standard Model)

Earnings are calculated after Voucher utilization:
Earnings =Actual Utilized Order Value,times theMargin Percentage

3.4 Fixed ROI Model (Alternative)

By mutual agreement (via Platform election and/or written addendum), you may opt for a Fixed ROI Model. The ROI rate, calculation basis, accrual method, and conditions will be specified in the election interface and/or addendum. Unless expressly agreed in writing, the Fixed ROI Model **replaces** per-order Earnings.

3.5 Crediting and Tracking

Under either model, you have dashboard access to pending/realized amounts, transaction history, and voucher status.

3.6 Payouts and Platform Commission

Payouts of accumulated amounts occur **monthly** to your designated bank account, subject to verification and any minimum thresholds communicated on the Platform.

- Under the Standard Model, Food Bundles deducts the Platform Commission from Earnings at payout.
- Food Bundles may change the Platform Commission rate with at least **one (1) month** prior notice via the Platform or email. Changes apply only to payouts for Earnings generated after the effective date of the change.

4. Withdrawals and Principal/Deposit

4.1 Earnings / Fixed ROI Withdrawal

Accumulated Earnings or Fixed ROI amounts may be withdrawn monthly, subject to verification and any minimum thresholds.

4.2 Principal/Deposit Withdrawal

If a principal deposit is required for participation and/or the Fixed ROI Model, it may be withdrawn upon **Forty five (45) days' written notice** via the Platform, subject to:

- no active Approved Vouchers remaining within the Voucher Validity Window;
- settlement of any confirmed chargebacks, fraud findings, or amounts owed by the Store Owner to Food Bundles; and completion of any open disputes under Section 5.4.

Food Bundles may apply a reasonable holdback to cover unresolved risks, but any holdback must be released once the relevant risk is resolved.

4.3 Set-Off

Food Bundles may set off any amounts owed by the Store Owner to Food Bundles against the Store Owner Wallet balance and/or any deposit, to the extent permitted by law.

5. Payment, Defaults, Disputes, and Liability

5.1 Payment Collection

Food Bundles is responsible for invoicing Clients and collecting payments under Approved Vouchers/Orders.

5.2 Default Coverage (Earnings Protection)

If a Client Default occurs, Food Bundles will pay the Store Owner the **outstanding Earnings** attributable to the Defaulted Approved Voucher/Order **within thirty (30) days after the Default is confirmed**, provided that:

- The Approved Voucher/Order and delivery were verified in Platform records;
- There is no evidence of fraud, collusion, or misuse by the Store Owner; and
- The amount is not subject to an active dispute under Section 5.4.

5.3 Limitations of Liability
To the maximum extent permitted by applicable law, Food Bundles is not liable for indirect or consequential losses (including lost profits). Nothing in this Agreement limits liability for fraud, willful misconduct, or gross negligence where such limitation would be unenforceable under Rwandan law.

5.4 Order Disputes and Adjustments
Clients may raise disputes relating to delivery, quality, quantity, or pricing within the dispute window stated on the Platform (or, if not stated, within a reasonable time). Food Bundles will investigate in good faith. If an order is adjusted, refunded, or credited, the Actual Utilized Order Value may be reduced accordingly and the Store Owner's Earnings will be recalculated.

5.5 Store Owner Indemnity (Narrow)
The Store Owner will indemnify Food Bundles against third-party claims and losses arising from the Store Owner's fraud, collusion, unlawful activity, breach of this Agreement, or misuse of the Platform.

5.6 Platform Provided "As Is"
The Platform is provided with reasonable care and security, but without warranties beyond those expressly stated in this Agreement.

6. Representations, Responsibilities, and Compliance

6.1 By Store Owner
You represent that you have legal capacity and will comply with applicable Rwandan laws, including tax and anti-money laundering requirements, and will act in good faith when making Voucher decisions.

6.2 By Food Bundles
Food Bundles will maintain the Platform, manage Inventory and delivery professionally, onboard qualified Clients for Agakaye k'amadeni, and set Margin/ROI terms transparently.

6.3 Governing Principles
This Agreement aligns with **Law No. 45/2011 Governing Contracts** (including good faith and mutual assent) and electronic acceptance under **Law No. 18/2010**.

7. Term and Termination

7.1 Term
This Agreement begins on the Effective Date and continues until terminated.

7.2 Termination for Convenience
Either party may terminate this Agreement with **Forty five (45) days' notice**.

7.3 Termination for Cause
Food Bundles may terminate immediately for material breach, including fraud, collusion, or serious misuse of the Platform.

7.4 Settlement on Termination
Upon termination, the parties will:

- allow pending Approved Vouchers to expire or be completed within the Voucher Validity Window unless otherwise agreed;

- settle verified Earnings/ROI amounts in the next monthly payout cycle (or within a reasonable period not exceeding **sixty (60) days**); and
- process any eligible deposit withdrawal subject to Section 4.

8. Account Management by Food Bundles

8.1 Request Process

You may request through the Platform for Food Bundles to manage specified aspects of your account, including approving/rejecting Voucher Requests based on criteria you define.

8.2 Authorization

By submitting and confirming such a request, you grant Food Bundles a limited, revocable authorization to act on your behalf solely for the specified tasks. You may revoke authorization via the Platform, effective upon confirmation.

8.3 Standard of Care

Food Bundles will exercise reasonable care when managing your account. Food Bundles is not liable for losses arising from market changes, Client disputes, or force majeure unless due to fraud, willful misconduct, or gross negligence.

9. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the Republic of Rwanda.
The parties will first attempt amicable resolution. If unresolved within **Sixty (60) days** of written notice of dispute, the dispute will be referred to **arbitration seated in Kigali, Rwanda**, unless the parties mutually agree otherwise in writing.

10. Miscellaneous

10.1 Amendments

Food Bundles may update this Agreement with notice via the Platform or email. Continued use constitutes acceptance of non-material updates. **Changes to compensation models, default coverage terms, or account-management authorization require your explicit consent via the Platform or a written agreement.**

10.2 Force Majeure

Neither party is liable for failure to perform due to events beyond reasonable control.

10.3 Entire Agreement

This Agreement supersedes prior understandings regarding the Digital Food Store, except where a separate written addendum for the Fixed ROI Model or other specific terms is executed.

Signatures

Food Bundles Ltd By: Name: _____Title: _____Date: _____

Digital Food Store Owner Name: _____Date: _____